

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MOLINK MCMICHAEL,

Plaintiff,

SUMMONS

-against-

Index No.

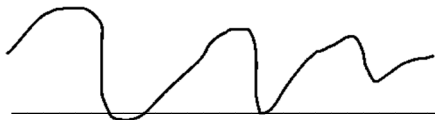
THE CITY OF NEW YORK, DET. 'FNU' NUNEZ OF
THE 42ND PRECINCT, POLICE OFFICER(S)
JOHN/JANE DOE(S) FROM THE 42ND PRECINCT
(Police Officers whose identity is currently unknown),Basis of venue:
CPLR 504(3) County in which
the cause of action arose

Defendant(s).

-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: November 30, 2021
New York, NY
By: Robert Marinelli, Esq.
Attorney for Plaintiff
Law Office of Robert Marinelli, PC
305 Broadway, Ste. 1001
New York, New York 10007
(212) 822-1427Defendants' Addresses:THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MOLINK MCMICHAEL,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. 'FNU' NUNEZ OF
THE 42ND PRECINCT, POLICE OFFICER(S)
JOHN/JANE DOE(S) FROM THE 42ND PRECINCT
(*Police Officers whose identity is currently unknown*),

Defendant(s).
-----X

COMPLAINT

Index No.:

Jury Trial Demanded on All
Issues

Plaintiff, by his attorney, ROBERT MARINELLI, ESQ., complaining of the Defendants,
respectfully alleges as follows:

PARTIES

1. At all times hereinafter mentioned, Plaintiff MOLINK MCMICHAEL ("Plaintiff" or "McMichael") was and is a resident of the State of New York.

2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK (the "CITY") was and still is a municipality organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendant New York City Police Department ("NYPD"), was an agency of the CITY, which as such, operated, maintained, managed, supervised and controlled the NYPD as part of an in conjunction with its municipal function.

4. At all times hereinafter mentioned, defendants DET. 'FNU' NUNEZ OF THE 42ND PRECINCT and POLICE OFFICER(S) JOHN/JANE DOE(S) FROM THE 42ND PRECINCT (*Police Officers whose identity is currently unknown*) ("Individual Defendants") were police officers, employees and agents of NYPD and CITY (together "Defendants"), acting

within the scope of their employment and under color of state law.

5. Individual Defendants are sued in their individual and official capacities.

NOTICE OF CLAIM

6. A Notice of Claim was timely e-filed and was assigned Claim Number: 2020PI022357.

7. A hearing pursuant to General Municipal Law § 50-h was virtually conducted on February 9, 2021 by the law office of COLON & PEGUERO, LLP located at 575 Eighth Avenue, New York, NY 10018.

8. Pursuant to New York State Executive Order Executive Orders No. 202.8, et. seq. 202.72, the statutes of limitations were tolled from March 20, 2020 until November 4, 2020 for all relevant state law causes of action, a period of 198 days.

9. This action has been commenced within one (1) year and ninety (90) days plus the 198 day days tolled pursuant to Executive Orders after the happening of the events, upon which these claims arise.

FACTUAL ALLEGATIONS

10. On April 29, 2020, McMichael was detained and taken into custody by Defendants and held at the NYPD 42nd Precinct in Bronx County, New York.

11. There was no probable cause or reasonable suspicion that McMichael had violated any provisions of the NY Penal Law, Administrative Code of the City of New York, or any other applicable statute, rule or regulation.

12. McMichael had not violated any provisions of the NY Penal Law, Administrative Code of the City of New York, or any other applicable statute, rule or regulation.

13. McMichael was held for a period between 12 to 24 hours at the 42nd Precinct,

most of the time in a cell. During the time he was detained at the precinct Defendants denied McMichael food, water, access to restroom facilities, and phone calls. There were several hours where he did not have a face mask and was not socially distanced from other prisoners, causing anxiety about contracting Covid-19.

14. After several hours McMichael was released from the precinct without being formally charged with any crimes or violations. McMichael eventually obtained a “Decline to Prosecute” letter from the Bronx County District Attorney Office.

15. As a result of being held all day at the 42nd precinct, McMichael missed that day of work with both of his employers: the NYC Administration for Children’s Services and Kingsbrook Jewish Medical Center: Brooklyn Hospital.

16. In addition, due to the arrest, McMichael suffered further lost time and pay at his employments. He lost 3 additional days of work at Brooklyn Hospital and was placed on administrative duty for two weeks at the Administration for Children’s Services while his employers investigated the incident.

17. Although the arrest did not result in any conviction and should have been sealed pursuant to NY Criminal Procedure Law § 160.50, NYPD officers subsequently still had access to the arrest record which complicated and lengthened what otherwise would be a routine traffic stop.

18. As a result of the above McMichael has suffered personal injury including emotional and reputational damages.

FIRST CAUSE OF ACTION:
False Arrest/Imprisonment
Under State Law and 42 U.S.C. § 1983

19. Plaintiff incorporates by reference and realleges all of the preceding paragraphs of

this complaint as though fully set forth herein.

20. Defendants detained and imprisoned Plaintiff without probable cause or reasonable suspicion to do so.

21. Defendants intended to confine Plaintiff.

22. Plaintiff was conscious of the confinement.

23. Plaintiff did not consent to the confinement.

24. The confinement was not otherwise privileged.

25. Defendants violated the Fourth and Fourteenth Amendments because they detained and arrested imprisoned Plaintiff without probable cause.

26. As a direct and proximate result of this unlawful conduct, Plaintiff sustained deprivation of liberty and other damages herein alleged.

SECOND CAUSE OF ACTION
Malicious Prosecution
(Pursuant to State Law and 42 U.S.C. § 1983)

27. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

28. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional and state law rights. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for the Plaintiff's arrest or prosecution, yet defendants continued with the Prosecution, which was resolved in plaintiff's favor.

29. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of plaintiff's constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

30. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

THIRD CAUSE OF ACTION
Denial of the Right to a Fair Trial
(Pursuant to 42 USC § 1983)

31. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

32. The Individual Defendants fabricated false allegations against Plaintiff that was likely to influence a jury.

33. The Individual Defendants forwarded false allegations to prosecutors in the Bronx County District Attorney's office.

34. As a direct and proximate result of this unlawful conduct, Plaintiff sustained a deprivation of liberty and the damages herein alleged.

FOURTH CAUSE OF ACTION
Excessive Force
(Pursuant to 42 USC §1983)

35. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

36. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable, disproportionate force to arrest and imprison Plaintiff.

37. As a direct and proximate result of this unconstitutional conduct, Plaintiff sustained the damages herein alleged.

FIFTH CAUSE OF ACTION
Failure to Intervene
(Pursuant to 42 USC §1983)

38. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

39. Individual Defendants who were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth and Fourteenth Amendments.

40. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein alleged.

**SIXTH CAUSE OF ACTION:
Assault and Battery**

41. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

42. Upon information and belief, Individual Defendants intended to cause harmful bodily contact to Plaintiff.

43. Upon information and belief, Individual Defendants, in a hostile manner voluntarily caused Plaintiff's injuries.

44. That Individual Defendants contact with Plaintiff constituted a battery in violation of the laws of the State of New York.

45. That as a result of the foregoing acts of the Defendants, Plaintiff, suffered severe emotional and/or mental distress, all of which may be permanent in nature, and that as a result of the foregoing, the Plaintiff, has sustained damages, which exceed the jurisdictional limit of lower courts.

**SEVENTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

46. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

47. That as a result of the aforementioned extreme and outrageous conduct intentionally inflicted by Individual Defendants, employees of the New York City, and defendant City, Plaintiff suffered severe emotional and/or mental distress, including but not limited to emotional overlay, depression, stress, anxiety, humiliation, embarrassment and tension.

48. That as a result of the foregoing intentional, extreme and outrageous acts of the Defendants, Plaintiff, suffered severe emotional and/or mental distress, all of which may be permanent in nature, and that as a result of the foregoing, the Plaintiff, has sustained damages, which exceed the jurisdictional limit of lower courts.

**EIGHTH CAUSE OF ACTION:
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

49. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

50. That as a result of the aforementioned incidents negligently caused by Defendants, Plaintiff suffered severe emotional distress and physical injuries.

51. As a result of the aforementioned extreme and outrageous conduct negligently inflicted by Individual Defendants, Plaintiff suffered severe emotional and/or mental distress, including but not limited to emotional overlay, depression, stress, anxiety, humiliation, embarrassment and tension, serious permanent personal injuries of mind as well as special damages and loss and/or diminution in his enjoyment of life, and physical injuries, all of which are permanent in nature.

**NINTH CAUSE OF ACTION:
Municipal Liability
(Pursuant to *Respondent Superior* and 42 USC § 1983)**

52. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

53. At all relevant times herein mentioned the City was the employer of Individual Defendants.

54. At all relevant times herein mentioned the Individual Defendants were acting within the scope of their employment.

55. This is not an isolated incident. The City, through policies, practices and customs, directly caused the constitutional violations suffered by Plaintiff.

56. The City, through its police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

57. The City, through its police department, has a de facto quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

58. Upon information and belief, the City, by widespread custom and practice, did not exercise reasonable care and diligence in the selection, engagement, employment and training of its agents, servants, and employees, including Individual Defendants so as to constitute deliberate indifference to civilians' constitutional rights.

59. The City, at all relevant times, was aware that these individual defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

60. Upon information and belief, the City had prior knowledge of the inappropriate, unlawful and improper conduct of its agents, servants and employees, including Individual Defendants that deprived civilians, including Mr. McMichael of his constitutional rights, so as to constitute deliberate indifference.

61. The City, at all relevant times, was aware that these individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct these policies, practices, and customs were the moving force behind Plaintiff's injuries.

**TENTH CAUSE OF ACTION:
NEGLIGENT HIRING/RETENTION/TRAINING/SUPERVISION**

62. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

63. The CITY and NYPD did not exercise reasonable care and diligence in the selection, engagement, employment and training of its agents, servants, and employees, including Individual Defendants, and were negligent in the hiring and retention of them.

64. Such failure by the CITY and NYPD to exercise reasonable care and diligence was the proximate cause of MCMICHAEL's injuries.

65. That as a result of the foregoing, Plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

JURY DEMAND

66. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

CPLR § 1602 STATEMENT

67. That this action falls within one or more of the exceptions set forth in the C.P.L.R. §1602.

1. CPLR Section 1602, Subdivision 7, relating to "the defendants' having acted with reckless disregard for the safety of others".
2. CPLR Section 1602, Subdivision 11, relating to "the defendants' having acted knowingly or intentionally and in concert to cause the act or failures".

PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests that the Court grant the following relief jointly and severally against Defendants:

Damages:

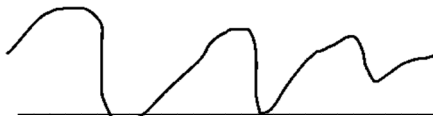
- a) Compensatory damages;
- b) Punitive damages;
- c) Attorneys' fees and costs pursuant to 42 U.S.C. §1983;
- d) Interest, costs and disbursements;

Injunctive Relief:

e) Pursuant to the decision and order by S.C. J. Honorable Lyle E. Frank, in *R. C., A. G., J. J. v. The City of New York*, et. al. Index No.: 153739/2018 (Sup Ct. New York Co.), NYSECF Doc. No. 200, September 27, 2021, annexed herein, an order sealing and prohibiting NYPD access to the arrest record of the complained of false arrest.

Other and further relief as the court deems proper.

Dated: November 30, 2021
New York, NY



By: Robert Marinelli, Esq.
Attorney for Plaintiff
Law Office of Robert Marinelli,
305 Broadway, Ste. 1001
New York, New York 10007
(212) 822-1427